

25STCV09430 25STCV09430

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 25STCV09430 Hearing Date: June 26, 2026 Dept: 224

Arslan v. Nehmeh

TENTATIVE RULING

Plaintiff's motion to vacate default judgment pursuant to CCP 473, is DENIED.

ANALYSIS

The motion to vacate the default judgment which this Court entered on May 11, 2026, is denied for several reasons.

First, once a defendant fails to respond to a complaint, and then the plaintiff elects to proceed with a default prove-up, that process can not be unwound by the Plaintiff without adequate justification. (*Stein v. York*, 181 Cal.App.4th 320 (2010).) A default prove-up, is essentially a one-sided trial where a party has its opportunity to prove their causes of action, and damages. Just as a party can not get two opportunities with a jury by simply filing a CCP 473 motion, a party can not ask to go back and try to ask for different damages or relief that was not proven at the trial by filing a CCP 473 motion. Plaintiff's disagreement with the amount of damages the court found are not properly challenged by a CCP 473 motion. There are other proper ways to challenge a court's findings, but it is not by this motion. The Court can not give Plaintiff legal advice about what motion he may file, or how to appropriately seek relief.

Additionally, Plaintiff moves to vacate the default judgement on grounds that the Court did not have all of Plaintiff's evidence and he wants a judgment in an amount over \$400,000. For example, Plaintiff's Exhibit M-1 asks the Court to enter judgment to include an amount of \$413,611.65. When proceeding by default prove-up, the damages a court may award are limited to what is expressly demanded in the Complaint. "If a default judgment awarded against a defendant exceeds the relief demanded in the complaint (*Janssen v. Luu* (1997) 57 Cal.App.4th 272, 278, 66 Cal.Rptr.2d 838), or is a different form of relief than demanded in the complaint (*Finney v. Gomez* (2003) 111 Cal.App.4th 527, 539, 3 Cal.Rptr.3d 604), the defendant is "effectively denied a fair hearing [citations]" (*Matera v. McLeod* (2006) 145 Cal.App.4th 44, 61).) Thus, a default judgment in an amount greater than the amount demanded in the Complaint, would be void.

Here, Plaintiff's complaint demanded, "no less than \$95,150." (Compl. at paragraph 42.) A court would never, under the law be able to award a judgment greater than the amount specified in the Complaint.

As the Court reviewed Plaintiff's motion and the Court's ruling on May 11, 2026, the Court noted a typographical error made by the Court in its order of May 11, 2026. The witness who testified at the hearing, was Plaintiff's sister Caroline J. Arslan, not Rita Moussa. The Court's minute order from the hearing on May 4, 2026, reflected the correct name of the witness. (See Minute Order 5/4/26.) The Court will correct the ruling dated May 11, 2026. The Judgment stands.

Conclusion

Plaintiff's motion to vacate default judgment pursuant to CCP 473, is DENIED.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.